



CHAPTER vi.

An Act to disannex from the Regius Professorship of Divinity in the University of Cambridge the Ely Canonry now annexed thereto and for other purposes. [25th April 1940.]

WHEREAS by the Ecclesiastical Commissioners Act 1840 (sections 2 and 12) it was enacted (inter alia) that the number of canons in the chapter of the cathedral church of Ely should be six and that two canonries should be permanently annexed and united to the Regius Professorships of Hebrew and Greek respectively in the University of Cambridge : 3 & 4 Vict.
c. 113.

And whereas pursuant to a statute made under section 26 of the Universities of Oxford and Cambridge Act 1877 by the University of Cambridge Commissioners appointed by that Act the canonry so annexed to the said Regius Professorship of Greek was severed therefrom and annexed to the Ely Professorship of Divinity in the University of Cambridge : 40 & 41 Vict.
c. 48.

And whereas pursuant to a statute made under section 6 of the Universities of Oxford and Cambridge Act 1923 by the University of Cambridge Commissioners appointed by that Act the canonry so annexed to the said Regius Professorship of Hebrew was severed therefrom and annexed to the Regius Professorship of Divinity in the University of Cambridge : 13 & 14
Geo. 5. c. 33.

And whereas the canonries so annexed to the said Ely Professorship of Divinity and the said Regius Professorship of Divinity are residentiary canonries :

And whereas the duties of a canon residentiary and the term of residence required to be kept at the cathedral church of Ely by a canon residentiary holding the office of either of the said professorships cannot be properly fulfilled by a person holding the office of the said Regius Professorship and it is expedient—

- (1) To disannex from the said Regius Professorship the canonry now annexed thereto and to suppress that canonry;
- (2) To provide for the payment by the chapter of the cathedral church of Ely of an annual contribution towards the stipend of the said Regius Professorship of the amount and subject to the condition by this Act provided; and
- (3) To enact the other provisions of this Act:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the *Ely Cathedral Canonries Act 1940*.

Definitions.

2. In this Act unless the context otherwise requires the following expressions have the following respective meanings:—

“the University” means the chancellor masters and scholars of the University of Cambridge;

“the Regius Professorship” means the Regius Professorship of Divinity in the University;

“the Regius Professor” means the person for the time being holding the office of the Regius Professorship;

“the appointed day” means the twenty-fifth day of March nineteen hundred and forty;

“the cathedral church” means the Cathedral Church of the Holy and Undivided Trinity of Ely.

3.—(1) The canonry in the cathedral church now annexed to the Regius Professorship is hereby disannexed therefrom and suppressed and shall be deemed to have been so disannexed and suppressed as from the appointed day.

Ely
Canonry
dis-
annexed
from
Regius
Professor-
ship and
suppressed.

(2) Paragraph 5 of chapter XXXV of statute E of the University (which paragraph enacted that the canonry of the cathedral church then annexed to the Regius Professorship should remain annexed thereto) is hereby repealed and shall be deemed to have been so repealed as from the appointed day.

(3) The schedule to the Ecclesiastical Commissioners Act 1840 is hereby amended by the substitution of " five " for " six " as the number of canons residentiary in the cathedral church and shall be deemed to have been so amended as from the appointed day.

4. As from the suppression of the said canonry the chapter of the cathedral church shall out of the capitular revenues of the cathedral church pay to the financial board of the University towards the stipend of the Regius Professor the annual sum of six hundred pounds which payment shall be made in equal quarterly sums on the twenty-fifth day of March the twenty-fourth day of June the twenty-ninth day of September and the twenty-fifth day of December in every year and the first such quarterly payment shall be made on the twenty-fourth day of June nineteen hundred and forty :

Chapter of
Ely to
contribute
to stipend
of Regius
Professor.

Provided that the obligation imposed on the said chapter by this section to make the said payments shall continue only so long as the election to the office of the Regius Professor is limited to persons who are at the time of their election in priest's orders in the Church of England and if at any time the said limitation on election to that office be removed the said obligation of the said chapter shall forthwith cease.

5. The amendments specified in the second column of the schedule to this Act (being amendments consequential on the provisions of this Act and amendments relating to matters of minor detail) shall be made in the constitution and the statutes in force at the passing of this Act for the government of the cathedral church

Amend-
ments of
Ely
Cathedral
statutes.

but notwithstanding that those amendments have been made by this Act the said constitution and statutes as so amended may be further amended by a scheme made in accordance with the provisions of the Cathedral Measures 1931 and 1934 in like manner as if those amendments had been enacted by a scheme so made.

Costs of
Act.

6. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the University.

The SCHEDULE referred to in the
foregoing Act.

CONSEQUENTIAL AND MINOR AMENDMENTS OF ELY
CATHEDRAL CONSTITUTION AND STATUTES.

Provisions amended.

Amendments.

Constitution.

Section IV

The words from "Whenever" to
"annexed" shall be omitted and the
following words substituted :—

"Whenever there is a vacancy in the
Ely Professorship of Divinity in the
University of Cambridge to which
professorship a residentiary canonry
in the cathedral church is annexed"

Statute III.

Section 4

- For the words "three canons residen-
tiary" there shall be substituted the
words "two canons residentiary"

Statute X.

Section 1

- In the proviso the words "a canonry
which is annexed to a professorship"
shall be omitted and the following words
substituted :—

"the canonry annexed to the Ely
Professorship of Divinity"

Section 2

- In proviso (ii) the words from "in the
case of" to "such canon" shall be
omitted and the following words
substituted :—

"in the case of the holder of the
residentiary canonry which is annexed
to the Ely Professorship of Divinity
residence at the University shall be
reckoned as residence at the cathedral
church but so that that canon"

Provisions amended.

Amendments.

Statute XIII.

Section 2

- After paragraph (i) there shall be inserted the following new paragraph :—

“ (ia) make all payments (if any) which are due from the chapter to the financial board of the University of Cambridge ; ”

Statute XIV -

- For the words “ the two canonries annexed to professorships ” there shall be substituted “ the canonry annexed to the Ely Professorship of Divinity ”

Printed by PERCY LUND, HUMPHRIES & Co., LTD.

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., Controller of His Majesty's Stationery Office
and King's Printer of Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;
39-41 King Street, Manchester 2; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

* Price 2d. net